



Public Safety Engineer (Hussey Gay Bell). Response to RFP / SOW for
Fire Station No. 27 Design Professional Services. 10-1-2024

PROFESSIONAL SERVICES SUPPLEMENTAL AGREEMENT

Request for Proposal

Prepared by

City of Roswell

FOR

Design Professional Scope of Services for:
Fire Station #27
Project No. 57105

Original RFP Issued – August 26, 2024

Addendum 1 Issued – September 20, 2024

(Addendum 1 – Responses are provided in black strikethrough and/or blue font in response to HGB's 09.05.24 mark-up of the original RFP)

Addendum 2 Issued – September 26, 2024

(Addendum 2 – Responses are provided in black strikethrough and/or red font in response to HGB's 09.25.24 comments on Addendum 1 of the RFP)

Attachment: HGB Executed Proposal for Design of FS-27 (Design of Fire Station #27)

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Professional Services Supplemental Agreement Number – (TO - XX)
Between Owner and
Public Safety Engineer (Company Name)
Design Professional Scope of Services for FIRE STATION #27

(Addendum 1 – Responses are provided in black strikethrough and/or blue font in response to HGB’s 09.05.24 mark-up of the original RFP)

(Addendum 2 – Responses are provided in black strikethrough and/or red font in response to HGB’s 09.25.24 comments on Addendum 1 of the RFP)

Design Professional’s Services for the Purposes of this Project the terms “Architect”, “Engineer”, **Public Safety Engineer**, and “Design Professional” shall be synonymous and carry the same meaning. Design Professional shall provide Basic and Additional Services as set forth below and in accordance with Public Safety Engineer (Company Name) Contract Agreement RFQ #23-121-G AE Design Services for Public Safety Facilities with City of Roswell (COR):

The Design Scope of Services contained herein is provided to convey to the Design Professional the City of Roswell’s minimum expectations / requirements. The Scope of Services listed are not necessarily all-encompassing and does not relieve the Design Professional of accounting for, and providing all necessary services required whether listed or not.

Design Professional Services Proposal Pricing: This design project is a Time & Materials (T&M) with a Not to Exceed (NTE) based on the fee schedule contained in the executed Agreement. Refer to **Attachment E** for specific details and format that is to be utilized when submitting the cost proposal.

The “Design to Budget” for the base construction cost of this Fire Station #27 Project is not to exceed \$7,000,000.00. This budget addresses all construction costs to include; General Requirements, Bonds, Insurance, Contractor Fee, and Escalation to mid-point of Construction. The “Bid Package” shall be designed and provided to fit within this base budget. **The \$7 million listed in the 1st sentence of this paragraph purposely does not include approximately \$940k of contingency. The City wants the project designed to the base budget, not to the budget that includes contingency. This to avoid designing to the overall budget which includes contingency as we have experienced in the past that the design will creep and utilize all contingency as though it was part of the base budget. The Design Professional’s cost estimates for the overall project that are discussed in section A.8 are to include the base budget and separate lines for contingencies.** The Design Professional is responsible to track the costing through all stages of design and not allow scope creep, and not allow the estimated cost to exceed the stated “Design to Budget.” The Design Professional’s has responsibility for providing valid ~~Engineers~~ **professional** estimates for construction costs in accordance with industry standards and to assure that **the City is apprised immediately if the cost estimate exceeds the budget and is to provide alternatives to the Owner for consideration to facilitate bringing the project back in line with the base not to exceed budget. these estimates do not exceed the projects Design to Budget.**

I. BASIC SERVICES

A. GENERAL REQUIREMENTS

1. Design Services Description

The Design Professional shall provide the services necessary to fully develop a complete design for Fire Station #27 (FS#27) The Project Scope is as follows:

Fire Station #27 is to be located on the property owned by the City of Roswell located on Fouts Rd near the intersection of Fouts Road and Holcomb Bridge Road as shown in **Attachment A** entitled Topographic and Boundary Survey dated 01/10/2024. The property is in land lots 714 and 729, 1st District, 2nd Section City of Roswell, Fulton County Georgia. The 5.375 AC property consists of two lots: Parcel ID 12 279007290468 and Parcel ID 12 2670077300577 as shown in **Attachment A**. The overall size of Fire Station #27 is anticipated to be approximately 10,500 +/- Sq Ft.

The new FS #27 shall be designed and constructed to meet the following requirements:

- a. Be designed and constructed on City of Roswell property in land lots 714 and 729, 1st District, 2nd Section City of Roswell, Fulton County Georgia on the 5.375 AC property.
- b. Design a new building and proper site work as indicated in the conceptual site and floor/office lay-out plans as indicated in **Attachment B** and **Attachment C** respectively. Site work, floor, and office lay-out as per City of Roswell requirements.
- c. Preliminary Geotechnical report information is provided in **Attachment D**.

- d. The building shall accommodate 3 truck bays, 8 bunks, kitchen area, dining/dayroom area, office space, gear lockers, EMS Storage, workout room, bathrooms with showers, and storage rooms for gear. (See **Attachment C** for details.)
- e. Provide standby power capacity sufficient to supply lighting, mechanical ventilation systems, communication system, and associated equipment to maintain a fully functioning fire station. Additionally, the system shall have an automatic transfer switch to engage emergency back-up power when there is a power outage. New generator fuel storage shall be sized with a 72-hour capacity.
- f. As part of the design documents, and with the City of Roswell input, include new interior furnishings necessary to make the Fire Station fully functional (bunks, desks, lockers, kitchen appliances, etc.). [We understand that HGB includes Built-In Lockers, Casework, etc. Yes, the City would like HGB to account for FF&E, and list them as a bid alternate for the Owner consideration when bids come in.](#)
- g. Attachments A, B, C and D referenced above are provided as part of this RFP which once executed will become a Supplemental Services Agreement (Task Order), and part of the overall Owner – Design Professional Contract agreement.

2. Survey

Some preliminary survey has been completed that can be seen in **Attachment A (Parcel Information / Location)**. The Design Professional shall provide all necessary site topographic and boundary survey necessary to perform the required Design and Permitting of the Project and setting of initial benchmarks. Construction layout, staking, relocation of benchmarks, and other surveying necessary for the General Contractor to perform their work are not included in the basic services of the Design Professional.

3. Project Delivery Method

This Agreement presumes that the construction of the subject Project shall be procured utilizing the Design-Bid-Build method with one bid package.

4. Project Sight- Project/Program Data Tracking and Control System (DTCS)

The Owner has implemented a Program wide Project Document Tracking and Control System known as 'ProjectSight.' ProjectSight is a cloud-based data management software designed to streamline project collaboration, documentation, and communication among all team members. The Design Professionals use of the system is mandatory. Examples of what the Engineer will utilize the system for includes Design deliverable submissions, requests for information (RFI's), meeting minutes, applications for payment, etc. The Owner will grant access to one or two essential individuals from the Design Professional's organization that will be responsible for entering information into the system on behalf of the design firm. These two individuals will receive training on how to utilize the system for the needs/requirements of the project. The estimated training time for ProjectSight software is 2-hours for 2 people. All information and correspondence is to be routed through Public Safety Engineer, who will have the two (2) designated individuals responsible for interacting / working in ProjectSight.

5. Schedule Preparation

The Design Professional shall prepare a detailed project schedule immediately upon execution of the Design Services Supplemental and it will be incorporated into the Contract Agreement, as **Attachment F**. Project Schedule shall be updated, highlighting completed tasks and schedule adjustments on a regular periodic basis as the project progresses (updates monthly at a minimum and bi-weekly if the Owner's representative determines it is necessary). Design Professional shall provide services as necessary to meet the Project Schedule.

6. LEED

Not used.

7. Meetings /Coordination

Design Professional shall attend, participate, and lead design progress meetings as necessary and as requested by the Owner to meet the project schedule, to review work in progress, to resolve design issues, and as preparation for formal presentations. Design Professional shall also submit meeting notes for each design meeting. Design Professional's key team leads, as identified, and agreed with Owner, shall attend, and participate in design meetings, at the Owner's Offices*, as outlined below:

Bi-weekly 1-hour Teams/Zoom Progress Meetings	10
Design Development	2*
Construction Documents	2*
Presentations	2*

~~Additional meetings requested by the Owner to meet the project schedule, review work in progress, to resolve design issues, and as preparation for formal presentations shall be provided by the Design Professional as part of the included services. The Design Professional shall meet with the Owner's staff (Program Management, Fire Department, Environmental Public Works, and if needed meet with the Mayor and Council for updated Concept Design, 30% design, 60% design, and 90% design stage review and approval. The Design Professional's Project Manager will be available to attend all meetings as necessary identified in the paragraph above. Design Professional's Project Manager shall document all meetings and shall provide meeting minutes to the Owner's representative via the program and project database system (Project Sight) within two business days after each meeting. Project design meetings, or update meetings, held via teleconference, phone calls, or on-line, shall also be run by and documented by the Design Professional's Project Manager. not be considered as counting against the total number of designated meetings specifically required above.~~

8. Construction Cost Estimating

Design Professional shall prepare all Statements of Probable Construction Cost in accordance with the CSI Uniformat™ Cost Classification or an acceptable similar method as may be approved by the Owner. *The base Probable Construction Cost shall include all work planned to be included in the General Contractor's scope of work within the not to exceed design budget with separate line item listing for contingencies.* All Statements of Probable Construction Cost shall represent the facts existing as of the date of execution of the statement and shall represent the true state of the Design Professional's opinion as to the anticipated cost of construction (base design-to-cost, with contingency separated out as distinct separate line item(s). As well, estimates for Alternates shall be provided as separate line items from the design-to-cost and contingency). The Design Professional shall submit in writing to the Owner Statements of Probable Construction Cost at the Design Development stage, the 50% Construction Document stage, and at the 95% Construction Document stage. ~~each stage of the Project Design to include each design stage and during the development of construction documents.~~

9. Design Criteria

The Design Professional shall be responsible for familiarizing and designing to local, state, and federal codes and ordinances. The Design Professional shall seek guidance from any applicable permitting office to ensure final design can be permitted and constructed. If unavoidable conflicts occur with the City code, the City will take the lead on resolving these conflicts, however the appropriate Design Professional may be requested to support the City Representative in the event of a conflict that warrants it. Avoidable conflicts with the City code are the Design Professional's responsibility to resolve. *Unavoidable conflicts with the City code would be reimbursed at the Design Professional contracted hourly rates.*

10. Energy Modeling

Not used.

11. Design Documents

The Design Professional shall provide all necessary documents and plans required by the applicable governing, regulatory and permitting Agencies for review including but not limited to the following: Fire Marshal; Community Development; Environmental Public Works Department, Fulton County (sewer easement) and incorporate all comments and necessary revisions received through the permitting process sufficient to receive approvals on behalf of the Owner and to allow the Construction Contractor to secure the Building Permit and any other permits that may be required and ultimately to receive all necessary agency approvals to receive a Certificate of Occupancy.

In addition to the design progress meetings required in item 7 above, the Design Professional shall be responsible for scheduling and attending up to three (3) meetings necessary to properly coordinate the design review by governing agencies, code officials, or utility authorities in obtaining building permit approvals on behalf of the Owner. The Design Professional shall inform the Owner of all scheduled meetings with the applicable Agencies and further provide documentation of all communications and directions provided by the agency within two business days of such events. Changes in the Project documents and/or plans requested by the permitting agencies shall not be implemented without informing the Owner of such request; and the documents and plans are not to be considered complete or final without review by the Owner. Public Safety Engineer should include two (2) rounds of permitting comments and responses, barring any design engineer errors and omissions.

12. Form of Design Document Submissions

Unless noted otherwise, when Design Professional is required to make a submission of any document(s) and/or drawing(s) to the Owner, the Design Professional shall provide up to 3 hardcopies and one electronic copy through Project Sight of the originals. Electronic copies shall be provided to the Owner in MS Word, MS Excel, MS PowerPoint, AutoCAD, and Adobe Acrobat, to the greatest extent possible. When providing documents in Adobe Acrobat those documents should be converted from their original software into Adobe so that the files are searchable and editable to the maximum extent possible. Bid and Construction Document printing, shipping, and delivery is to be included in the design fee budget presented with the proposal as they are reimbursable expenses.

Bid and Construction Documents will be electronically distributed in PDF format, tailored for 11 x 17 and full-size printing. The specifications are to be in PDF format. Additionally, the Owner requests the original native electronic files to be available internally (e.g., AutoCAD, Word, Excel) in addition to the PDFs. **The complete set of electronic files provided to the City by the design professional, are for the City's internal use only. The Design Professional will also provide the selected General Contractor with AutoCAD (.DWG) files of the floor plan, reflected ceiling plan, and civil drawings typically used for construction with release forms filled out, properly executed, and submitted by the Contractor. Other .DWG drawing files may be requested by the Contractor for use and authorized on a case-by-case basis.**

13. Basis of Design

The Design Professional shall prepare and update during the Project a Basis of Design Document. The Basis of Design is a document that records the concepts, calculations, decisions, and product selections used to meet the Owner's Project Requirements and to satisfy applicable regulatory requirements, standards, and guidelines. The Basis of Design will include both narrative descriptions and specific assumptions made by the Design Professional during design development as well as the reasoning behind those assumptions. For any Owner Requirements that cannot be met, documentation detailing what was done, its impact on the Owner's Project Requirements, and how the Owner's Project Requirements were modified shall be included in the Basis of Design. The Basis of Design shall include, but is not limited to, the following:

1. Specific codes, standards, and guidelines considered during design of the facility and designer interpretations of such requirements.
2. Information regarding ambient conditions (climatic, geologic, structural, existing construction) used during design.
3. City will provide all anticipated Fire truck Apparatus geometry and turning radius prior to the Basis of Design calculations.

The Owner will provide a standardized format to be used for the Basis of Design or the Design Professional may submit an alternative for consideration if the Design Professional has an existing format it prefers.

B. SPECIFIC REQUIREMENTS

After the Notice to Proceed, the Design Professional will perform the following services:

1. Design Phase

Design Professional shall, during the Design Phase, provide their best effort to minimize the Project construction cost and maintain the design of the Project, at all stages, so that the facility can be competitively bid to maximize the probability that bids can be obtained within the Owner's Construction Budget. Design Professional shall identify areas of the Project (Program) that the Design Professional recommends reducing, eliminating, or changing to an additive alternate, if necessary, to bring the design within the budget. Refer to the 4th paragraph at the beginning of this RFP and paragraph A.8 for further clarification regarding the basis of design cost.

- a. Site Investigation - Based on the included Concept Design the Design Professional shall provide a detailed outline of recommended services, if any, that Owner shall obtain under a separate contract. These services could include surveying, geotechnical, jurisdictional wetland/waters verification, etc. Public Safety Engineer is responsible for Boundary, Tree, Topography Survey and Utility Identification / Locates.
- b. The included concept design shall be rounded out as needed by the Public Safety Engineer to include detailed site plans indicating existing elements, existing utilities, proposed elements, and relocation of any utilities; and space allocation for future elements; building floor plans with individual space allocations; preliminary furniture layouts; revised building elevations, with building material types and selected for each elevation for each building; building cross-sections; the initial Basis of Design information necessary for; initial Energy

~~Model with design options outlined for different energy efficiencies (if applicable); updated Statement of Probable Construction Cost; updated LEED Checklist (if applicable) indicating the potential points to be obtained represented by the Design; and, outline specifications.~~

- c. The included concept design shall be rounded out by the Public Safety Engineer to include necessary coordination points between the buildings systems including but not limited to electrical connection points, communication data [points as applicable](#), special ventilation needs, and/or special plumbing connection requirements. These Design documents will fix and illustrate the size and character of the entire Project and its essentials, including but not limited to kinds of materials, criteria and sizing of major components, approximate layouts including required spaces for clearances, type of structure, grade elevations, sidewalks, existing utilities, utilities to be relocated (permanently and if needed temporarily), roads, parking areas, and descriptions of mechanical and electrical systems.
- d. The Design will be required to be reviewed by the Owner's Staff (EPW, Program Management, and Fire Department). The Design Professional shall revise the Project Design as necessary based on the comments provided during each phase of the review process by the Owner. Upon the request of the Owner, the Design Professional shall furnish to the Owner physical models of the Project, at a specified scale. Such models, if required, shall be performed as an Additional Service to this Contract and will be compensated as Reimbursable Expenses.
- e. Major System and Design Development Documents. In accordance with the approved Project Schedule and based upon approval of and comments made by the Owner regarding the Design Documents, the Design Professional shall prepare and submit to the Owner the Major System and Design Development Documents. These documents shall consist of a Site Plan, preliminary clearing, and tree protection plan (tree management plan), preliminary grading and drainage plan, preliminary planting plan, building plans, floor plans, sections, elevations, equipment layouts, other drawings as required, and outline specifications for a preliminary review by the Owner of the Major System components and Design Development documents. These documents will fix and illustrate the size and character of the entire Project and its essentials, including but not limited to the kinds of materials, the criteria and sizing of major components, equipment sizes and capacities, the approximate layouts including required spaces for clearances, the type of structure, etc.
- f. The Design Professional shall provide preliminary specifications sections. The specifications at a minimum are to give basic descriptions of essential components of all systems. Design Development Package (~~schematic design~~) shall include an updated Statement of Probable Construction Cost [as noted in paragraph I.A.8 in this document](#). Upon the request of the Owner, the Design Professional shall furnish to the Owner sketches/illustrations/product samples and manufacturer's data sufficient for the Owner to assess and achieve a comfort level with the proposed Major Systems as outlined in the Design Develop Documents.
- g. Construction Documents – The Design Professional shall work closely with the Owner to ensure that the development of the Construction Documents is in harmony with the [approved Design development package](#) ~~approved Schematic Design~~. The Design Professional shall attend regular scheduled project coordination meetings with the Owner to ensure that designs are proceeding in accordance with the approved Design and Project Requirements for the other.
 - (1) Utilizing the format developed by the Construction Specification Institute, the Design Professional shall prepare and submit to the Owner the Construction Documents based on the approved Schematic Design Documents, consisting of working drawings, specifications, and other documents as necessary to set forth in detail the architectural and engineering work required of the Design Professional necessary for the Owner to obtain competitive construction bids from responsible contractors.
 - (2) The Design Professional must provide all documents required for permitting agencies' approval that are necessary to receive a Certificate of Occupancy. The Construction Documents must indicate, in detail, the requirements for the construction of the Project (including all on-site and off-site work). The Design Professional shall design the work in a manner such that the buildings will be free from leaks if all components are installed in accordance with the Construction Documents.
 - (3) Design Professional shall submit Construction Documents to the Owner, on three different occasions/intervals mutually agreed to between the Design Professional and Owner, for review and comment. (Typical intervals would be [design development stage, 50% construction documents, and 95% construction documents](#)). ~~30%, 60% and 90% level of completion~~). After review and comment on each level of Construction Documents by the Owner, the Design Professional shall address the comments and continue forward toward the next level of completion and ultimately with preparation of final (Bid-Ready) Construction Documents, including final Specifications for all authorized work

on the Project. The Bid-Ready documents shall incorporate all comments and any modifications required for compliance with all applicable ordinances, codes, regulations, standards, the approved program, and written instructions from the Owner. The resulting final Bid-Ready Construction Document submittal is to be a complete, fully coordinated, intergraded package suitable for bidding distribution without any significant addenda or further clarification required.

- (4) At the 95% complete stage, unless mutually agreed otherwise, the Design Professional shall submit and obtain all necessary permit reviews and approvals with all COR Departments and other applicable regulatory agencies on behalf of the Owner, including but not limited to the following: Fire Marshal (state and local); Planning Department; Transportation & Public Works Department; Public Utilities; and Public Health Department. Design Professional shall be responsible for submitting all permitting forms, all required hard copies, and electronic copies in the formats required by the various agencies. Owner will pay all application and all permit fee unless noted otherwise, **along with associated printing and shipping costs.**
- h. Specification Format: The Specifications must be in the full Construction Specifications Institute (CSI) Master Format 50 Division 2004 version as established in the CSI Manual of Practice covering required materials, products and equipment, their installation and operation, quality assurances, reference standards and submittal requirements.
 - (1) Specifications must provide all supplemental information and requirements included but not elsewhere covered by the Contract Documents. Specifications shall not be provided on the Drawings.
 - (2) Owner will provide initial versions of the Advertisement for Bids, Instructions to Bidders, General Conditions, Special Conditions, Contract Agreement, Bond Forms, other Bidding Requirements and all Division 01 General Requirements specifications for review and incorporation into the Project Manual. If the Design Professional has any suggested changes to these front-end documents, they shall review them in "track changes edit" mode and provide comments or supplemental information to be edited into each of the Owner specifications to make the Owner provided documents a complete set of documents (Substitution of Design Professional sections for Owner provided sections is not an acceptable method for satisfying the review and comment requirements of the Owner specifications). Design Professional shall prepare technical specifications for all applicable areas of work and compile the Specifications for reproduction using the format provided by the Owner. Design Professional shall reformat and edit as needed all specifications provided by the Design Professional to match the Owner provided documents and numbering systems.
- i. Working Drawings shall consist of those drawings necessary to describe the size and character of the Project and its design, construction, materials, finishes, fixtures, civil, structure, mechanical systems and electrical systems and other related work. The Working Drawings must include, where applicable, at a minimum the following:
 - (1) Civil Engineering documents to consist of, but not limited to, all site improvements, retaining walls, grading, topographic lines, existing utilities (above and below grade), storm drainage, erosion control, paving, fencing, site sanitary system, site water system, landscaping, landscape irrigation (if any), utility relocations (temporary and permanent), and overall utilities coordination sheet;
 - (2) Architectural floor plans, exterior elevations, interior elevations, building sections, wall sections, reflected ceiling plans, interior and exterior details, door and finish schedules, furniture and equipment layouts, and roof plans. All Architectural Floor Plans shall be at not less than 1/8" = 1' 0" scale, must be fully coordinated with all other disciplines and all required equipment, and must show all required partitions, partition types, doors and door numbers, windows, room names and numbers, dimensions and any other required notes and information for complete floor plans;
 - (3) Detailing and dimensions that comprehensively describe the design of the building and site development in a consistent and coordinated manner;
 - (4) Wall sections and interior elevations at scales appropriate to illustrate with sufficient detail and clarity the intended work and thereby facilitate its construction;
 - (5) Reflected ceiling plans at the same scale as the respective floor plans. All reflected ceiling plans must be fully coordinated with all engineering disciplines and must show all required ceiling lights, diffusers,

access panels, returns, fans, smoke detectors, sprinkler heads, fire alarm devices, and any other required devices on the ceiling. The architectural reflected ceiling plan takes precedence over all the other engineering plans in regards to fixture and device locations. Sprinkler head requirements shall be per NFPA requirements and coordinated with the reflected ceiling plan;

- (6) Structural construction drawings and specification notes: These must be provided for any structural steel and cast-in-place concrete work, as well as for foundation reinforcing steel and any other structural elements. Structural Drawings shall include top of foundation elevations. Complete structural details at not less than 1/2" = 1' scale;
 - (7) HVAC, plumbing, and fire protection layouts showing major equipment and mains as well as typical distribution branches, riser diagrams, supply and return grilles, fire dampers, and a schedule of plumbing fixtures valves, and all other "end product" elements and features. All HVAC, plumbing and fire protection plans must be fully coordinated with the architectural floor plans, reflected ceiling plans and other engineering drawings. All Drawings shall be at not less than 1/8" = 1' 0" scale;
 - (8) Electrical systems, security systems, A/V Systems, data, and telecom system layouts, as well as riser diagrams for the building, and all other "end product" elements and fixtures. All electrical power, lighting, controls, security systems, A/V, and data/telecom plans, must be fully coordinated with the architectural floor plans, reflected ceiling plans, and all other engineering drawings; and
 - (9) Electrical site plans at not less than 1" = 50' scale.
- j. Defining the Construction Contractor's Responsibilities: Design Professional shall not require the Contractor to provide professional services that constitute the practice of architecture or engineering in the Construction Documents unless such services are proprietary for that portion of the Work or unless the Contractor needs to provide such services to carry out the Contractor's responsibilities for construction means, methods, techniques, sequences, and procedures. Contractor shall not be required to provide professional services in violation of applicable law. If professional design services or certifications related to systems, materials, or equipment are specifically required of the Contractor by the Contract Documents, the Design Professional will specify all performance and design criteria that such services must satisfy. The Contract Documents shall specify when shop drawings or submittals require the seal of a specialty consultant, provided that the Owner shall be consulted and shall approve each instance in which submittals are required to be provided by the Contractor under seal of the Contractor's specialty consultant.
 - k. Review of Construction Documents: If requested by the Owner the Construction Documents shall be submitted by the Design Professional to a designated third-party reviewer(s) for review of constructability and/or completeness. Such third-party review and correction of items found by the third-party shall not constitute a justification for additional compensation to the Design Professional. *Comments that the Design Professional disagrees with, decisions regarding these instances will be decided by the Owner.*
 - l. Finish Materials and Colors: Design Professional shall work with the Owner to select finish materials and colors and prepare color schedules and material/color boards for review, comment, revision, and approval by the Owner. *As well the Contract Documents shall require the GC to Submit all interior and exterior samples and submittals for Owner and Design Professional confirmation that the Contractor is providing what is intended.*
 - m. Construction Documents Approval: Design Professional shall meet with the Owner and Using Agency for the purpose of presenting and reviewing the Construction Documents including the updated schedule and a final Statement of Probable Construction Cost. The Design Professional shall obtain the written approval of the Owner for the Construction Documents before proceeding with the next phase.
 - n. Permitting: *Refer to paragraph G.4 regarding Design Professional responsibilities for permitting. This paragraph further supplements those requirements.* Design professional shall meet with the Owner and permitting agencies at appropriate stages of the Design to obtain appropriate preliminary approvals, final approvals, and/or insight from the local agencies responsible for permitting the Project at the earliest possible time. Design Professional shall prepare and submit documents, respond to comments from those agencies, meet with the agencies, and revise the Design as necessary and as directed by the Owner to comply with such permit reviews. Design Professional shall inform the Owner of all communications, directions, and meetings with the permitting agencies within two business days of such events. Changes in the Project Design requested by the permitting agencies shall not be implemented without first informing the Owner of such request. All permit practicals must be obtained prior to the Project being released for Bid, unless otherwise approved by the Owner. The permitting effort shall continue until the Owner and applicable permitting

agencies have approved the working drawings where a Contractor can obtain all necessary permits to construct the Project without need for further revisions. The acquisition of the permit shall not be the responsibility of the Design Professional.

- o. Alternates: Design Professional shall design the facility based on the available funds provided for in the Design to Budget. During all levels of the Design Phase, Design Professional shall include within the design, additive alternates authorized by the Owner, that can be competitively bid and awarded by the Owner, depending on funding availability, either at contract award or during the course of the construction. Incorporation of the alternates into the Project, at any phase, shall not represent a significant change to the Project Scope or additional services. *Bid alternates requested by the Owner that are not part of the base scope of services will be considered additional services. However, if the Owner decides to identify a particular base scope item as a bid alternate this is not considered additional services. Another scenario is if the Owner identifies an item in the base scope of services document to be an alternate (e.g. paragraph A.1.f) this is not considered an additional service.*

2. Bid and Award Phase

- a. Provide Construction Bid Documents prepared in an acceptable format to allow competitive bids to be received by the Owner for the required one bid package.
- b. Design Professional and/or Owner will place computer files of Bidding Documents, including Addenda, in a location to be determined by Owner to which bidders will have access to download the Documents. Bidders will print their own Documents.
- c. Design Professional's Project Manager shall attend the Pre-Bid meeting with the Owner to answer questions from potential bidders regarding the Project.
- d. The Owner will receive all bidder questions. The Design Professional shall support the Owner as requested in reviewing, determining acceptability, and responding to questions in accordance with the procedures set forth in the Bidding Documents, and support the Owner in the preparation of such necessary addenda as appropriate to clarify, correct, or change the Bidding Documents. The Owner will issue each finalized Addendum. All changes in Construction Bid Documents shall be marked, circled, or designated by other means to make the changes, being issued by addenda, clearly recognizable.
- e. The Design Professional shall assist the Owner in evaluation of the bids, review of the bid tabulation prepared by the Owner, evaluate the bidders' qualifications, and submit recommendation of award to Owner.
- f. The Design Professional shall prepare documents for submittal to the Mayor and Commission for contract award, including but not limited to conforming the bid documents into Contract Documents. Conforming the Contract Documents shall include editing the Bidding Documents to incorporate all changes made by any addenda or post bid addenda, actual bid submittal documents, revising the Agreement and Bond Forms to be contract and Contractor specific, and any negotiated cost, value engineering, and other necessary changes to prepare the Contract Documents for execution in a format acceptable by the Owner. *In the off chance that value engineering changes must occur as a result of the bid process, incorporation of these changes into the documents would be considered additional services for the Design Professional and would be reimbursed by the Owner.*
- g. The Bidding or Negotiating Phase will be considered complete upon execution of all Contract Documents with the Contractor by Owner.
- h. One bid event is anticipated for this project. If the project had to be modified after the 1st bid and re-bid for some unknown reason, it would be considered an additional service for the Design Professional involvement.

C. DEFINITIONS

Wherever used in this Agreement (including the Attachments hereto) terms (including the singular and plural forms) printed with initial capital letters have the meanings indicated in the text above or in the Attachments; in the following provisions as defined in this Agreement:

- 1. Basic Services--The services to be performed for or furnished to Owner by Design Professional in accordance with Part I, of this Agreement.

2. Additional Services--The services to be performed for or furnished to Owner by Design Professional in accordance with Part II, of this Agreement.
3. COR – City of Roswell.
4. CSI – Construction Specification Institute.
5. Construction Contract – final executed Contract between General Contractor and Owner. To be provided by Owner and incorporated into the Contract Documents as defined in I, (B)(2)(f)(2).
6. Construction Cost--The cost to Owner of those portions of the entire Project designed or specified by Design Professional. Construction Cost does not include costs of Services of Design Professional or other design professionals and Subconsultants, cost of land, rights-of-way, or compensation for damages to properties, or Owner's costs for legal, accounting, insurance counseling or auditing services, or interest and financing charges incurred in connection with the Project, or the cost of other services to be provided by others to Owner pursuant to Part I(A)(7) of this Agreement. Construction Cost is one of the items comprising Total Project Costs.
7. Construction Documents – All Project Documents and other documents required hereunder to be prepared by Design Professional to be used in bidding and construction of the Project in conformance with Owner's objectives and all requirements herein. "Construction Documents" include, without limitation, Drawings, Specifications, and those documents required under Section I(B)(2)(e)
8. Contract Documents – Defined in the Construction Contract; provided that until execution thereof, such term includes the draft or proposed agreement between Owner and Contractor for construction of the Project and any Construction Documents, as defined in Section I, (B)(2)(f)(2).
9. Design Professional – used interchangeably with the Design Professional or Design Professional team, Architect or Engineer.
10. Drawings– That part of the Contract Documents prepared or approved by Design Professional which graphically shows the scope, extent, and character of the Work to be performed by Contractor. For avoidance of doubt, "Shop Drawings" are not Drawings as so defined.
11. Final Completion – Defined in Section I(B)(4)(r).
12. General Contractor – The individual or entity with whom Owner enters the Construction Contract to provide materials, perform services, or work as provided in the Contract Documents.
13. Laws and Regulations; Laws or Regulations – Any and all applicable laws, rules, regulations, ordinances, codes, and orders of any and all governmental bodies, agencies, authorities, and courts having jurisdiction.
14. M&C – Mayor and City Council.
15. Owner – Includes the City of Roswell government and all of its designated representatives and staff to manage the Project.
16. Project Documents – Data, reports, Drawings, Specifications, record drawings, and other deliverables, whether in printed or electronic media format, provided or furnished by Design Professional to Owner pursuant to this Agreement.
17. ProjectSight – data tracking and control system implemented and utilized by Owner's Representative / Program Manager (Jacobs). Design Professional will upload electronic versions of all deliverables to ProjectSight data base for Owner's and Program Manager's use.
18. Program Manager – authorized representative of Owner, assigned to assist in all phases of the project and will be Owner's agent under Owner's supervision.
19. Reimbursable Expenses – The expenses set forth in Exhibit C, Section C2 that are incurred directly by Design Professional in connection with the performing or furnishing of Services for the Project, and as allowed by the overarching City-Design Professional Services Agreement executed by HGB.

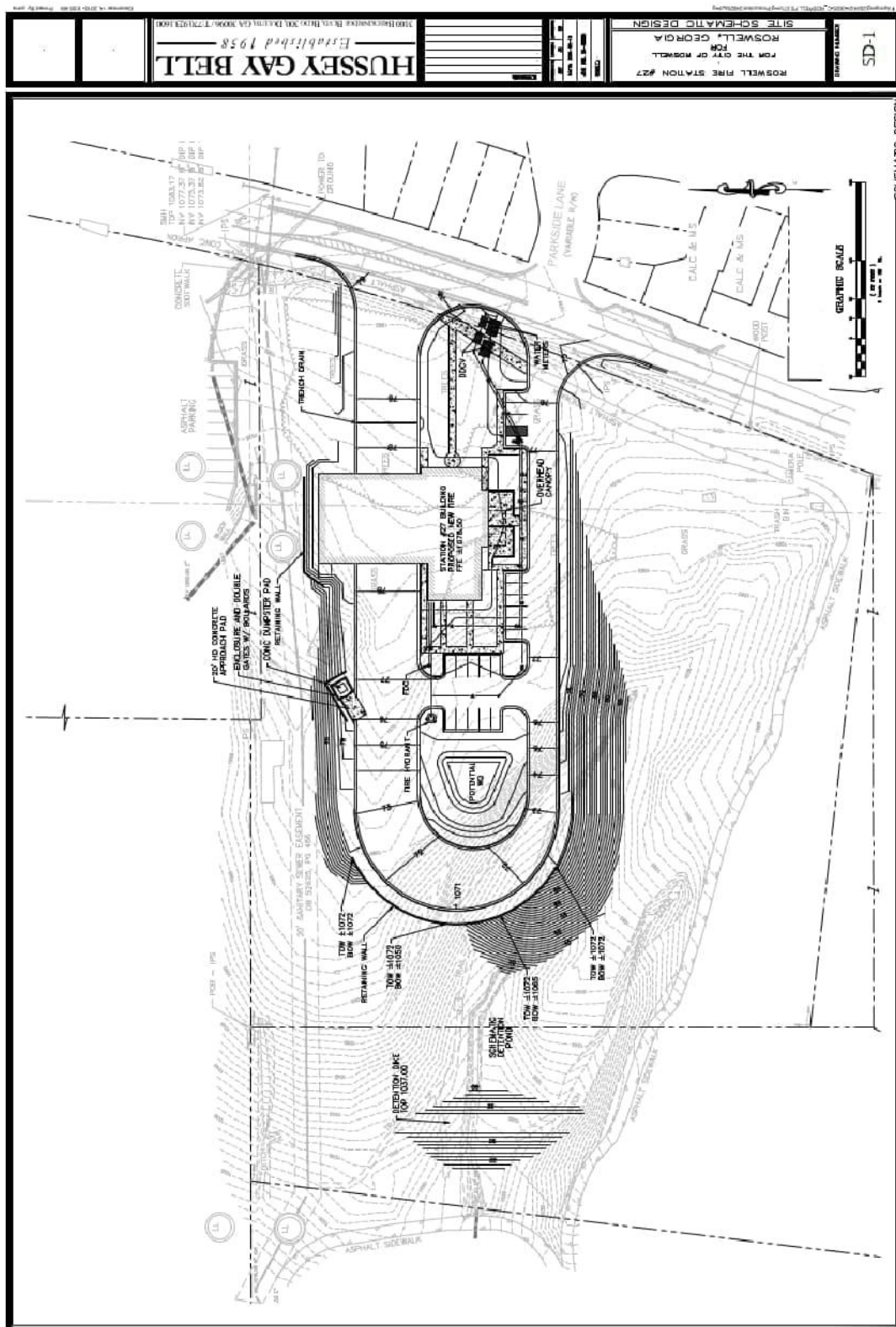
20. Resident Project Representative – The authorized representative of Design Professional, if any, assigned to assist Design Professional at the Site during the construction phase. The Resident Project Representative will be Design Professional’s agent or employee and under Design Professional’s supervision. As used herein, the term “Resident Project Representative” includes any assistants of Resident Project Representative agreed to by Owner.
21. Services – The services to be performed for or furnished to Owner by Design Professional in accordance with this Agreement. Such term includes Basic Services and Additional Services.
22. Specifications – That part of the Contract Documents consisting of written technical descriptions of materials, equipment, systems, standards, and workmanship as applied to the Work and certain administrative details applicable thereto.
23. Subconsultants – Individuals or entities having a contract with Design Professional to furnish services with respect to this Project as Design Professional’s independent professional associates, subcontractors, or vendors.
24. Substantial Completion – Defined in Section I. (B)(4)(p) of this agreement.
25. Total Project Costs – The sum of the Construction Cost, allowances for contingencies, and the total costs of Services of Design Professional or other design professionals and Subconsultants, together with such other Project-related costs that Owner furnishes for inclusion, including but not limited to cost of land, rights-of-way, compensation for damages to properties, Owner’s costs for legal, accounting, insurance counseling and auditing services, interest and financing charges incurred in connection with the Project, and the cost of other services to be provided by others to Owner pursuant to Exhibit B of this Agreement.
26. Stakeholders – an established group to provide input on functionality, general design, and operation and maintenance guidance to the Project planning and design team professionals in accordance with the intent and descriptions of the Project as approved by the Mayor and City Council. The Stakeholder group is generally created to function during the Design Phase but may be used during certain components of the construction phase. The stake holder membership is selected to provide representation of Owner’s Staff who generally will become responsible for the use, operation, and maintenance and ultimate use of the final product of the Project.
27. Work – All construction, materials, and services to be performed by the Contractor that are required by the Contract Documents and Construction Contract or reasonably inferable therefrom. The Work may refer to the whole Project or only a part of the Project, as appropriate based on context.

D. ATTACHMENTS



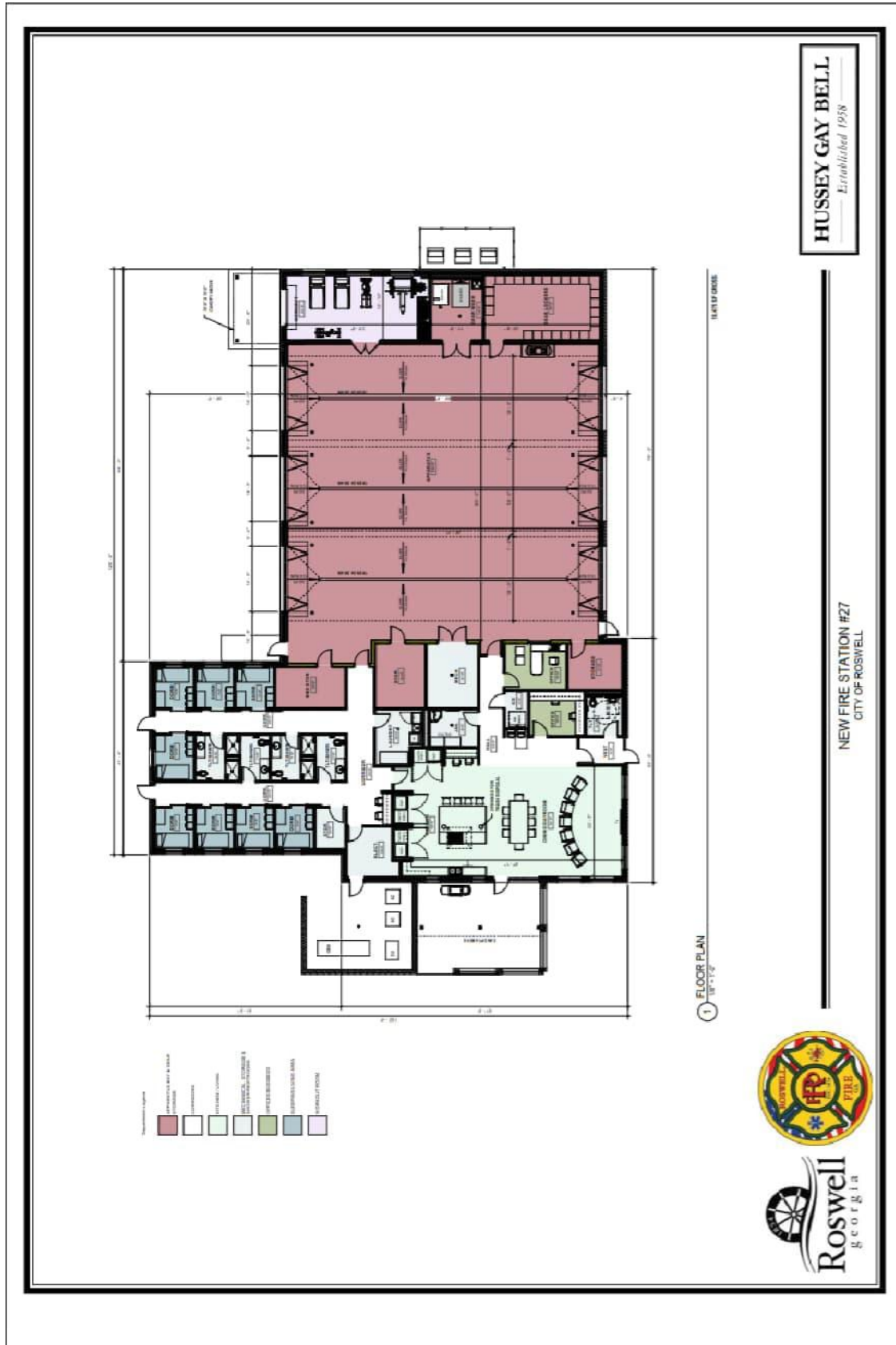
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Attachment B: Preliminary Site Concept Plan



Note: Attachment B is provided as a separate PDF as well.

Attachment C – Preliminary Concept Floor Plan



Note: Attachment C is provided as a separate PDF as well.

Attachment D: Preliminary Geotechnical Engineering Report**ECS Southeast, LLC**

Preliminary Geotechnical Engineering Report

Fouts Rd & Holcomb Bridge Rd Development

Fouts Rd and Holcomb Bridge Road
Roswell, Georgia

ECS Project No. 10:12173

January 31, 2024



Note: Full Report provided as a separate PDF.

Attachment: HGB Executed Proposal for Design of FS-27 (Design of Fire Station #27)

Attachment E - Design Professional Cost Proposal for Fire Station #27 Services

I. COST PROPOSAL / COMPENSATION

- A. As provided in this Attachment E, Design Professional shall be compensated for Basic Services on an hourly basis at the rates provided herein, plus Reimbursable Expenses; however, such compensation shall not exceed Five Hundred Forty Thousand, One Hundred Ninty-eight Dollars (\$ 540,198.00) (“NTE Limitation”).
- B. Subject to the NTE Limitation, Owner shall compensate the Design Professional for Owner-approved and satisfactory performance in accordance with the terms of this Agreement in the following manner:
1. An amount equal to the cumulative hours charged to the Project by each of Design Professional’s employees and Design Professional’s Subconsultant’s employees multiplied by the Standard Hourly Rate (as provided in executed agreement) for each person for all Basic Services performed specifically on the Project, plus allowable Reimbursable Expenses, if any.
 2. At no point shall the amount to be paid the Design Professional for a particular Element exceed the total for that Element, as set forth in the table below, or the amount of the Services completed for that Element.
 3. The total compensation for each Element is based on the following distribution of the NTE Limitation, which applies to both hourly compensation (Paragraph I.B.1) and Reimbursable Expenses (Section II) required for each Element:

Proposal Costs Summarized by Bid Item (See attached detailed sheets showing breakdown by Bid Item)					
Bid Item No. & Description	Estimated Level of Effort (Hrs)	Labor Cost (\$)	Reimbursable Expenses (\$)	Total NTE Cost (\$)	Line Item % of Total Cost
1.0 - Design Project Management	104.0	\$19,480.00	\$0.00	\$19,480.00	3.61%
1.A.1 - Design Services - FF&E	176.0	\$16,800.00	\$620.00	\$17,420.00	3.22%
1.A.2 - Survey	128.0	\$17,260.00	\$4,288.00	\$21,548.00	3.99%
1.A.3 - Project Delivery Method	N/A	N/A	N/A	N/A	N/A
1.A.4 - ProjectSight	6.0	\$780.00	\$0.00	\$780.00	0.14%
1.A.5 - Schedule Preparation	26.0	\$5,200.00	\$0.00	\$5,200.00	0.96%
1.A.6 - LEED	Not Req'd	Not Req'd	Not Req'd	Not Req'd	Not Req'd
1.A.7 - Meetings / Coordination	162.0	\$27,400.00	\$4,340.00	\$31,740.00	5.88%
1.A.8 - Construction Cost Estimating	126.0	\$20,200.00	\$0.00	\$20,200.00	3.74%
1.A.9 - Design Criteria	N/A	N/A	N/A	N/A	N/A
1.A.10 - Energy Modeling	Not Req'd	Not Req'd	Not Req'd	Not Req'd	Not Req'd
1.A.11 - Design Documents	170.0	\$23,380.00	\$0.00	\$23,380.00	4.33%
1.A.12 - Form of Design Document Submission	N/A	N/A	N/A	N/A	N/A
1.A.13 - Basis of Design	184.0	\$28,700.00	\$0.00	\$28,700.00	5.31%
1.B.1 - Design	2287.0	\$334,660.00	\$7,710.00	\$342,370.00	63.38%
1.B.3 - Bid & Award Phase	195.0	\$28,160.00	\$1,220.00	\$29,380.00	5.44%
Grand Totals:	3564.0	\$522,020.00	\$18,178.00	\$540,198.00	100.00%

4. Design Professional may request that the Owner adjust the distribution of the NTE Limitation (whether for Hourly Compensation or Reimbursable Expenses) between individual elements to be consistent with the quantity of Services rendered if approved by the Owner in its sole discretion, but in no event shall the total compensation exceed the NTE Limitation.
5. The total compensation for Design Professional’s Services included in the breakdown by elements as noted above incorporates all labor, overhead, profit, Reimbursable Expenses and Design Professional’s Subconsultant’s charges.
6. The amounts billed by the Design Professional for Services under Attachment E, Section II shall be based on the cumulative hours performed and charged to the Project during the billing period by each of Design Professional’s employees and each of the Design Professional’s Subconsultant’s employees at the Standard Hourly Rates set forth in Attachment E Appendix 1. Design Professional shall not charge hours to the Project for employees that

typically perform administrative or overhead tasks and that do not perform specific Services on this Project (e.g., principals, executives, marketing, accounting, clerical, and human resource staff).

II. COMPENSATION FOR REIMBURSABLE EXPENSES

- A. Subject to the NTE Limitation set forth in Attachment E, Section I hereof, Owner shall pay Design Professional for Reimbursable Expenses required by the Agreement at the rates set forth below. Reimbursable Expenses include only the following expenses that are required for the Design Professional to fulfill its contractual obligations for the Project: mileage to the Project Site or Owner's office; printing, reproduction, and distribution; costs for all reports, photographs, Drawings, Specifications, meeting minutes, or other documents required in Exhibit A; shipping or postage for documents required by Exhibit A; electronic media for delivery of electronic copies of documents; and all other non-labor cost associated with fulfilling the Design Professionals requirements of Exhibit A that are not specifically excluded as non-reimbursable below.
 1. All Reimbursable Expenses shall be based actual costs incurred, but not greater than local competitive rates.
 2. Mileage for transportation to the Site will be reimbursed at the standard mileage rate set by the Internal Revenue Service for the actual mileage traveled. A maximum mileage allowed per site visit shall be a total round trip of 150 miles. Any mileage in excess of the 150-mile limit will not be reimbursed.
 3. Reimbursable Expenses will solely include direct Project-related expenses.
- B. Additional Reimbursable Expenses, when approved in writing by the Owner prior to being expended, shall include; transportation, reproduction of reports, Drawings, Specifications, and similar Project-related documents in excess of those required under Exhibit A; shipping or postage; permit fees; other expenses as may be associated with Additional Services.
- C. The following expenses are not Reimbursable Expenses: toll telephone calls, mobile phone charges, internet charges, computer usages, printer usage, equipment usage charges, digital camera usage, reproduction or printing costs for incomplete or draft documents, standard office supplies, transportation rentals; fuel charges; or any other overhead items of the Design Professional that are not specifically and solely used for this Project.

III. OTHER PROVISIONS CONCERNING PAYMENT

- A. Whenever Design Professional is entitled to compensation for the charges of Design Professional's Subconsultants, those charges shall be the amounts billed by Design Professional's Subconsultants, without additional mark-up.
- B. The Reimbursable Expenses (by Design Professional or Design Professional's Subconsultant) shall be invoiced to the Owner at cost.
- C. To the extent necessary to verify Design Professional's charges and upon Owner's timely request, Design Professional shall make copies of such records available to Owner without an increase in compensation or the NTE Limitation.

IV. COMPENSATION FOR ADDITIONAL SERVICES

Owner shall pay Design Professional for Additional Services at an amount agreed upon and approved in writing by Owner before performance of such Additional Services. Additional Services performed by the Design Professional prior to written approval from the Owner will be at the sole risk of the Design Professional.

V. ACKNOWLEDGEMENT

NTE Amount (NTE Limitation). (To be filled out by proposer):

Five Hundred and Forty Thousand, One Hundred and Ninty-eight Dollars (\$ 540,198.00)SUBMITTED BY (Company): Hussey Gay BellSIGNATURE:  DATE: October 1, 2024PRINTED NAME: Christopher M. Caudle, AIAADDRESS: 3100 Breckinridge Blvd. Building 300CITY / STATE: Duluth, GA ZIP 30096TELEPHONE: (770) 923 - 1600
Area Code

NOTE: Design Professional is to return the entire RFP with pages 21 thru 23 filled out. Place the following verbiage on the cover page of this document (between the City's logo and the document title):

Public Safety Engineer (Company Name) . Response to RFP / SOW for Fires Station No. 27 Design Professional Services.

The design professional is to provide *electronic Excel spreadsheet* breaking down each Bid Item in detail to include Discipline, Description, Labor Category, Rate (\$/Hr.), Estimated LOE(Hrs), Reimbursable Expenses, and Estimated Cost.

See the Example of Detailed Spreadsheet to be submitted in Excel format electronically shown below:

Item #	Discipline	Description	Labor Category	Rate (\$/hr.)	Estimated LOE (hrs.)	Reimbursable Expenses	Estimated Cost
1.A.11 - Design Documents							
1.A.11	Architect & Interior	Design Documents	Electronic Files at Each Phase (Designer II)	\$120.00	22.0	\$0.00	\$2,640.00
1.A.11	Architect & Interior	Design Documents	Electronic Files at Each Phase (Admin Assist.)	\$70.00	8.0	\$0.00	\$560.00
1.A.11	Architect & Interior	Design Documents	Spec Formatting to Owner's # System:	\$0.00	0.0	\$0.00	\$0.00
1.A.11	Architect & Interior	Design Documents	Designer II	\$120.00	28.0	\$0.00	\$3,360.00
1.A.11	Architect & Interior	Design Documents	Administration Assistant	\$70.00	18.0	\$0.00	\$1,260.00
1.A.11	Architect & Interior	Design Documents	Managing Principal Architect	\$200.00	10.0	\$0.00	\$2,000.00
1.A.11	Civil & Survey	Design Documents	N/A	\$0.00	0.0	\$0.00	\$0.00
1.A.11	Structural	Design Documents	N/A	\$0.00	0.0	\$0.00	\$0.00
1.A.11	Cost Estimating	Design Documents	N/A	\$0.00	0.0	\$0.00	\$0.00
1.A.11	MEP	Design Documents	Electrical Engineer (Non Registered)	\$135.00	8.0	\$0.00	\$1,080.00
1.A.11	MEP	Design Documents	Mechanical Engineer (Non Registered)	\$135.00	8.0	\$0.00	\$1,080.00
1.A.11 - Design Documents				Subtotal:	102.0	\$0.00	\$11,980.00
1.A.13 - Basis of Design							
1.A.13	Architect & Interior	Basis of Design	Managing Principal Architect	\$200.00	40.0	\$0.00	\$8,000.00
1.A.13	Architect & Interior	Basis of Design	Designer II	\$120.00	30.0	\$0.00	\$3,600.00
1.A.13	Architect & Interior	Basis of Design	Administration Assistant	\$70.00	22.0	\$0.00	\$1,540.00
1.A.13	Civil & Survey	Basis of Design	Engineer III	\$120.00	40.0	\$0.00	\$4,800.00
1.A.13	Civil & Survey	Basis of Design	Senior Engineer	\$160.00	8.0	\$0.00	\$1,280.00
1.A.13	Civil & Survey	Basis of Design	Engineer I	\$100.00	8.0	\$0.00	\$800.00
1.A.13	Structural	Basis of Design	N/A	\$0.00	0.0	\$0.00	\$0.00
1.A.13	Cost Estimating	Basis of Design	N/A	\$0.00	0.0	\$0.00	\$0.00
1.A.13	MEP	Basis of Design	Electrical PE (Principal)	\$250.00	24.0	\$0.00	\$6,000.00
1.A.13	MEP	Basis of Design	Mechanical PE (Associate)	\$210.00	24.0	\$0.00	\$5,040.00
1.A.13 - Basis of Design				Subtotal:	196.0	\$0.00	\$31,060.00